

1 ENGROSSED SENATE
2 BILL NO. 1928

By: Murdock of the Senate

3 and

4 Moore of the House

5
6 An Act relating to water and water rights; amending
7 82 O.S. 2021, Section 1020.19, which relates to
8 metering of wells; removing certain meter use
9 requirement; authorizing the Oklahoma Water Resources
10 Board to implement certain allocation to encourage
11 conservation after certain date; specifying
12 requirements for participation; prohibiting excessive
13 use; requiring development of certain voluntary
14 groundwater use measurement program; requiring
15 issuance of annual certification; requiring
16 submission of certain certification with annual water
17 use report; exempting certain wells from provisions;
18 and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.19, is
21 amended to read as follows:

22 Section 1020.19. ~~Upon request of a majority of the landowners~~
23 ~~residing within a basin or subbasin, the Board is authorized to~~
24 ~~require that water wells be metered and that such meters as the~~
~~Board shall approve be utilized by the applicant and placed under~~
~~seal, subject to reading by the agents of the Board at any time.~~
~~The Board may also require that the applicant report the reading of~~
~~such meters at reasonable intervals.~~

1 A. To encourage groundwater conservation, beginning January 1,
2 2027, the Oklahoma Water Resources Board shall provide a five-year
3 flex allocation of groundwater usage based off the previously
4 determined allocated annual use of the basin or subbasin. A five-
5 year flex allocation shall not require a new permit for existing
6 permit holders. A five-year flex allocation shall be available for:

7 1. Existing permit holders for groundwater use permits in
8 basins or subbasins, based upon the maximum annual yield
9 determination at the time of the original application;

10 2. New applicants for groundwater use permits in basins or
11 subbasins based upon the current maximum annual yield determination;
12 and

13 3. New and existing applicants and temporary permit holders for
14 groundwater use permits in basins or subbasins where the maximum
15 annual yield has yet to be determined.

16 B. An applicant for a five-year flex allocation shall be
17 required to:

18 1. Submit an annual usage report of the prior year's usage from
19 a Board-approved water measurement system; and

20 2. Pay the annual groundwater permit fee.

21 C. A five-year flex allocation shall allow the permit holder to
22 exceed the determined annual allocation in any year of the five-year
23 allocation; provided, that the applicant shall adhere to the
24 cumulative annually determined allocation of the basin or subbasin

1 over the five-year period. The permit holder shall not exceed the
2 permitted annual allocation by over one hundred fifty percent (150%)
3 in any of the five (5) years.

4 D. 1. For all permit holders not participating in the five-
5 year flex allocation pursuant to this section, a groundwater
6 irrigation district created pursuant to the Groundwater Irrigation
7 District Act or a conservation district participating in a
8 conservation cost-share program pursuant to Section 3-3-101 et seq.
9 of Title 27A of the Oklahoma Statutes shall develop a voluntary
10 groundwater use measurement program that provides Board-approved
11 measuring systems to members, on a loan or cost-share basis, for use
12 in verifying the volume of water pumped from wells and irrigation
13 systems to ensure system efficiency and proper accounting of water
14 use.

15 2. The groundwater irrigation district or conservation district
16 shall issue an annual certification that the permit holder has
17 participated in the groundwater use measurement program pursuant to
18 paragraph 1 of this subsection. The certification shall be
19 submitted with the permit holder's annual water use report.

20 E. Nothing in this section shall apply to domestic wells.

21 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives